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LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F-51

SEPTEMBER 23, 2026

DEMURRER WITH MOTION TO STRIKE

Los Angeles Superior Court Case

25CHCV02124

Demurrer

with Motion to Strike Filed:

6/10/26

MOVING

PARTY: Defendants

Triplodge Hotel Santa Clarita/Valencia; SPK Hospitality LLC; Pankaj and Kalpana Patel Trust; Pankaj Patel; and Kalpana Patel (collectively, "Defendants")

RESPONDING

PARTY: Plaintiffs

Yanicza Contrera; Omar Hernandez; and Martin Hernandez, a minor, by his guardian ad litem Yanicza Contrera (collectively, "Plaintiffs")

NOTICE:

OK

RELIEF REQUESTED: Defendants demur against the first, fourth, and sixth causes of action in Plaintiffs' complaint, and seek an order striking Plaintiffs' prayer for attorney fees from the complaint.

TENTATIVE

RULING: The

demurrer is sustained as to Plaintiffs' fourth cause of action, and overruled as to Plaintiffs' first and sixth causes of action. The motion to strike is granted. Plaintiffs are granted 30 days leave to amend.

BACKGROUND

This is a habitability action in which Plaintiffs allege that on 6/17/23, they checked in to the Triplodge Hotel Santa Clarita/Valencia, owned and operated by Defendants. (Compl. ¶¶ 4–10, 16.) “On or about June 18, 2023, Plaintiffs awoke with severe bed bug bites across their bodies. Thereafter, Plaintiffs inspected their bed and discovered it was infested with bed bugs.” (Id. at ¶ 17.) Plaintiffs checked out of the hotel on 6/18/23. (Id. at ¶ 19.)

On 6/16/25, Plaintiffs filed their complaint, alleging against Defendants the following causes of action: (1) Battery; (2) Negligence; (3) Intentional Infliction of Emotional Distress; (4) Fraudulent Concealment; (5) Private Nuisance; (6) Public Nuisance; (7) Breach of Contract; and (8) Premises Liability.

On 6/10/26, Defendants filed the instant demurrer and motion to strike. On 8/27/26, Plaintiffs filed their oppositions. On 9/17/26, Defendants filed their replies.

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DEMURRER

As a general matter, a party may respond to a pleading against it by demurrer on the basis of any single or combination of eight

enumerated grounds, including that “the pleading does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e).) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.)

“A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Here, Defendants’ demur to Plaintiffs’ first, fourth, and sixth causes of action on the basis that Plaintiffs fail to allege facts sufficient to state those causes of action.

A.

Meet-and-Confer

Before filing its demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc. § 430.41, subd. (a).) “If the parties are not able to meet and confer at least 5 days before the date the responsive pleading is due, the demurring party shall be granted an automatic 30-day extension of time within which to file a responsive pleading, by filing and serving, on or before the date on which a demurrer would be due, a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer.” (Id. at subd. (a)(2).)

Here, Defendants’ counsel declares that on 6/3/26, he sent Plaintiffs’ counsel meet-and-confer correspondence regarding the issues raised in the instant demurrer and motion to strike, and reached out again on 6/9/26, but received no response. (Decl. of Matthew C. Dingilian ¶¶ 5–6.) Therefore, the Court finds that counsel has satisfied the preliminary meet and confer requirements of Code of Civil Procedure section 430.41, subdivision (a).

B.

Battery

Plaintiffs'

first cause of action alleges Battery against Defendants. "The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching." (So v. Shin (2013) 212 Cal.App.4th 652, 668-669.)

Here, Defendants

argue that "there are no facts that alleged Defendants themselves touched or caused Plaintiffs to be touched. All Plaintiffs have alleged is that they were exposed to bedbugs that Defendants failed to abate, which would be negligent at most." (Dem. 5:24–26.) However, upon review of the complaint, the Court finds that Plaintiffs have sufficiently alleged that Defendants "deliberately chose to not eradicate the bedbug infestation, which caused Plaintiffs to be bitten by bedbugs. Defendants', and DOES 1 through 20, inclusive, decision to not eradicate the bedbug infestation, or even warn Plaintiffs of the infestation, that remained in the room Plaintiffs intended to sleep in amounts to a willful disregarding of Plaintiffs' health and safety." (Compl. ¶ 38.)

Based on

the foregoing, the Court finds that here, at the pleading stage, Plaintiffs have alleged facts sufficient to constitute a cause of action for Battery. Accordingly, the demurrer is overruled as to Plaintiffs' first cause of action.

C.

Fraudulent Concealment

Plaintiffs' fourth cause of action

alleges Fraudulent Concealment against Defendants. "The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or

suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact.” (Hambrick v. Healthcare Partners Medical Group, Inc. (2015) 238 Cal.App.4th 124, 162.) Fairness requires that allegations of fraud be pled “with particularity” so that the court can weed out nonmeritorious actions before a defendant is required to answer. (Small v. Fritz Companies, Inc. (2003) 30 Cal.4th 167, 184.) The particularity requirement necessitates pleading facts about the alleged fraud that “show how, when, where, to whom, and by what means the representations were tendered.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.)

Here,

Defendants argue that Plaintiffs fail to allege facts with the requisite particularity to constitute their Fraudulent Concealment cause of action. Defendants assert that “Plaintiffs[] Complaint vaguely refers to hotel staff knowingly concealing a bedbug infestation, but there are no facts identifying such staff or facts which delineate the manner and means in which this fraud/concealment occurred.” (Dem. 6:19–22.) The Court notes that Plaintiffs fail to address this specific argument in their opposition.

As

Defendants argue in reply, “Plaintiffs[] fail to specifically outline who exactly committed the alleged concealments and fail to state how this concealment occurred.” (Defs.’ Reply 4:6–7.) “There [are] also no facts plead, for example, stating that Plaintiffs specifically inquired about the conditions of the room and/or were intentionally misled by Defendants. Further, there are no facts demonstrating that Defendants undertook measures to deprive Plaintiffs of information or access to these alleged [online] reviews prior to their decision to their stay.” (Id. at 4:17–21.)

Based on the foregoing, the Court finds that Plaintiffs have failed to allege facts with sufficient particularity to constitute a cause of action for Fraudulent Concealment. Accordingly, the demurrer is sustained as to Plaintiffs’ fourth cause of action.

D.

Public Nuisance

Plaintiffs’

sixth cause of action alleges Public Nuisance against Defendants. Public nuisances are “substantial and unreasonable” “offenses against, or

interferences with, the exercise of rights common to the public.” (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 305.)

Here,

Defendants argue that “the number of people clearly identified as affected by the alleged infestation in Plaintiffs’ room is at maximum three. This is not enough to claim public nuisance, as there are no facts or evidence plead that demonstrate any alleged bedbug infestation in Plaintiffs room affected guests or persons beyond Plaintiffs during their stay.” (Dem. 7:10–14.)

In

opposition, Plaintiffs assert that “the infestation of bedbugs in Plaintiffs’ room at the Subject Hotel ... can and likely was spread into the community at large as the Plaintiffs and other hotel guests were traveling from their residence to the hotel and other locations in the community, including likelihood of being spread to the homes of their family members, friends, etc.” (Pls.’ Opp. 13:25–28, citing Compl. ¶ 124.)

Based on

the foregoing, the Court finds that here, at the pleading stage, Plaintiffs have alleged facts sufficient to constitute a cause of action for Public Nuisance. Accordingly, the demurrer is overruled as to Plaintiffs’ sixth cause of action.

MOTION TO STRIKE

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id. at subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Here, Defendants move to strike Plaintiffs’ prayer for attorney fees. An award of attorney fees is proper when authorized by contract, statute, or law. (Code Civ. Proc. §§ 1032, subd. (b); 1033.5, subd. (a)(10).) Defendants argue that “Plaintiff has failed to demonstrate any contract or lease exists between themselves (hotel guests) and Defendants that allows for an award of

attorneys' fees. Further, Plaintiffs' Complaint cites to no statute that contains a provision for attorney's fees." (MTS 4:7–10.) The Court notes that Plaintiffs do not address this issue in their opposition, arguing only that they are entitled to punitive damages.

Based on the foregoing, the Court finds that Plaintiffs have failed to allege a basis for the recovery of attorney fees. Accordingly, the Court grants the motion to strike Plaintiff's prayer for attorney fees from the complaint.

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LEAVE
TO AMEND

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Here, the Court notes that this is the first demurrer and motion to strike heard against Plaintiffs' complaint, and further notes that Plaintiffs seek leave to amend to the extent necessary. Therefore, under the Court's liberal policy of granting leave to amend, Plaintiffs are granted 30 days leave to amend the complaint to cure the defects set forth above.

CONCLUSION

The demurrer is sustained as to Plaintiffs' fourth cause of action, and overruled as to Plaintiffs' first and sixth causes of action. The motion to strike is granted. Plaintiffs are granted 30 days leave to amend.